

Ramdeep Singh v. State of U.P. — bill challenge relegated to clause 6.5(b)

High Court of Judicature at Allahabad · Division Bench · 29 January 2015 · Writ - C No. 4064 of 2015 · **Writ dismissed; liberty to object under clause 6.5(b).**

HEADNOTE

A Division Bench dismissed a writ challenging the amount in an electricity bill dated 30 September 2014. The consumer's remedy was to file an objection before the Executive Engineer strictly in accordance with clause 6.5(b) of the U.P. Electricity Supply Code, 2005; liberty was reserved to pursue that course.

FACTUAL SUMMARY

Ramdeep Singh filed Writ-C No. 4064 of 2015 in the Allahabad High Court against the State of Uttar Pradesh and two others, seeking to challenge the amount shown in an electricity bill dated 30 September 2014. The petition was listed before a Division Bench of Arun Tandon and Harsh Kumar JJ. Counsel for the petitioner and for the respondents, including the Standing Counsel, were heard. No further facts about the connection, consumption, or the basis of the billed amount appear in the order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

billing-objection-to-executive-engineer

HOLDING

A writ challenging the amount disclosed in an electricity bill is not entertained where the consumer has a statutory remedy of objection before the Executive Engineer under clause 6.5(b) of the U.P. Electricity Supply Code, 2005; the petition is dismissed with liberty to pursue that objection strictly in accordance with the clause. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A Division Bench dismissed a writ challenging the amount in an electricity bill dated 30 September 2014. The consumer's remedy was to file an objection before the Executive Engineer strictly in accordance with clause 6.5(b) of the U.P. Electricity Supply Code, 2005; liberty was reserved to pursue that course. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE AMOUNT IN THE BILL DATED 30.9.2014

Not examined on merits; left to a clause 6.5(b) objection before the Executive Engineer. ¶ 1